

HOUSE No. 902

The Commonwealth of Massachusetts

PRESENTED BY:

Natalie M. Blais

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing an office of outdoor recreation.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Natalie M. Blais</i>	<i>1st Franklin</i>	<i>1/16/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>8/21/2025</i>

HOUSE No. 902

By Representative Blais of Deerfield, a petition (accompanied by bill, House, No. 902) of Natalie M. Blais that the Executive Office of Energy and Environmental Affairs be authorized to establish the office of outdoor recreation. Environment and Natural Resources.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 756 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing an office of outdoor recreation.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 21A of the General Laws is hereby amended by adding the
2 following section:-

3 Section 7C. (a) There shall be within the executive office of energy and environmental
4 affairs, the office of outdoor recreation. The office of outdoor recreation shall be administered by
5 a director who shall be appointed, and may be removed, by the secretary. The position of director
6 shall not be subject to the provisions of chapter 31 or section 9A of chapter 30.

7 (b) “Recreational use”, active or passive recreational use including, but not limited to,
8 activities that take place predominantly in a natural environment or a natural physical landscape,
9 including activities that are dependent on trails, natural landscapes, waters, and snow;

community gardens; and parks and nature-based playgrounds. Recreational use shall not include horse racing or indoor stadiums, gymnasiums, or similar structures.

(c) The Director will create and implement a strategic plan to achieve the following objectives:

Promote the Massachusetts outdoor recreation economy through partnerships with businesses, non-profit organizations, and local communities to advance outdoor recreation as an economic driver; advance equity and access to outdoor recreation opportunities; coordinate policy and recruit funding across federal, state, regional, and local governments; work with landowners and managers throughout the Commonwealth to promote public access and recreation infrastructure; and promote Massachusetts as a great place to work, live, and recreate, and improve quality of life for residents and visitors.

(d) The director of the office of outdoor recreation shall:

1. Establish metrics and baselines to evaluate the impacts of programs and initiatives of the office.

2. Identify and secure funding for outdoor recreation projects via federal grants and partnerships with non-profit organizations and businesses.

3. Serve as the central point of contact for the outdoor recreation industry, and work with industry partners to address potential challenges and opportunities.

4. Coordinate with state agencies and secretariats including but not limited to the Massachusetts Office of Travel and Tourism, the Department of Conservation and

30 5. Recreation, the Department of Fish and Game, Housing and Economic
31 Development, and the Department of Public Health to implement cross-agency initiatives and
32 priorities.

33 6. Hire and manage any additional staff, contractors, and interns that may be hired
34 by the office.

35 7. Represent the Commonwealth in regional and national learning networks and
36 utilize best-practices to inform initiatives and priorities.

37 8. Partner with peer agencies, local governments, the federal government,
38 businesses, and non-profit organizations to establish a strategic plan and associated initiatives,
39 projects, and policies to advance the economic, quality of life, natural resource, and health
40 benefits of outdoor recreation, and to ensure they are accessible to all, including those with
41 disabling conditions.

42 9. Identify, recruit, and secure funding for outdoor recreation projects, infrastructure,
43 and programs from federal, non-profit, and private grant programs, and distribute to projects and
44 programs throughout the Commonwealth.

45 10. Develop and build the structure for the Office of Outdoor Recreation, including
46 operational procedures and the hiring/management of contractors and additional staff.

47 11. Represent the Commonwealth at events, conferences, and speaking engagements
48 related to outdoor recreation and the outdoor recreation economy.

12. Create and promote marketing materials in coordination with the Massachusetts Office of Travel and Tourism to attract and retain visitors and investment in Massachusetts communities.

13. Develop and maintain a network of businesses, non-profits, and government partners who work in the outdoor recreation or outdoor recreation-adjacent fields.

14. Develop and maintain metrics to track the Office's impact and publish an annual report on the website of the executive office of energy and environmental affairs.

(e) The director in accomplishing the purposes of the office of outdoor recreation may with the approval of the secretary, expend funds from the Outdoor Recreation Trust Fund as provided under section 2GGGGG of chapter 29.

(f) The secretary shall be authorized to adopt regulations necessary for the administration of this section.

SECTION 2. The last sentence of section 8 of said chapter 21A, as appearing in the 2018 Official Edition, is hereby amended by inserting after the word "enforcement," in lines 91 and 92, the words:- the office of outdoor recreation.

SECTION 3. Chapter 29 of the General Laws is hereby amended by adding the following section:-

Section 2GGGGG. There shall be established and set up on the books of the commonwealth a separate fund known as the Outdoor Recreation Trust Fund. The purpose of the fund shall be to provide competitive grants for programs, projects and initiatives, to public and private organizations to further the objectives of the office of outdoor recreation, established

under section 7C of chapter 21A. The director of outdoor recreation shall administer the fund, subject to the approval of the secretary of energy and environment. Amounts credited to the fund shall without further appropriation, be expended only for the purposes stated in this section.

The fund shall consist of all monies credited, received, or transferred to the fund from (i) private or public sources as appropriations, gifts, grants, donations, or receipts, (ii) the federal government as reimbursements, grants-in-aid, or other receipts, and (iii) revenue from investing the monies in the fund. Revenues remaining in the fund at the end of a fiscal year shall not revert to the general fund and shall be available for expenditure in the following fiscal year. The fund shall not be subject to the provisions of section 5D. No expenditure from the fund shall cause the fund to be in deficiency at the end of the fiscal year. The director shall report annually, not later than October 1, on the fund's activities, including information about fund receipts, expenditures and the reason for each such expenditure, and fund balances, to the clerks of the house and senate, and the chairs of the house and senate committees on ways and means.